

actual notice to the nonconsenting parent. CCP § 1277(a)(4). No proof of service is on file. The Court notes that Petitioner filed a “Proof of No Service.” This is insufficient; it appears only two attempts at personal service were made at the father’s likely current address. This matter is continued to **Monday, June 1, 2026, at 8:30 a.m. in Department 64**. Petitioner shall file an Amended Petition, which includes the father’s current address, and an Amended Order to Show Cause (“Amended OSC”) for the continued hearing date. The Amended OSC must be personally served on the nonconsenting parent at least 30 days before the continued hearing date. Proof of service must be filed with the court. No appearance is necessary on today’s calendar.

MOEBES VS. LAMONT, ET AL.

CASE NUMBER: 25CV-0208787

Tentative Ruling on Motion to Compel Discovery Responses: Plaintiff Shirley Moebes seeks an order compelling Defendant Jay Lamont to respond to Form Interrogatories, Special Interrogatories, and Requests for Production, and that Requests for Admission, be deemed admitted by Defendant. Plaintiff also requests monetary sanctions. Defendant opposes the motion on the grounds that it is mooted by the service of verified responses on March 5, 2026.

A party has thirty days after service to respond to a Request for Production, Request for Admissions, Form Interrogatories, or Special Interrogatories. CCP §§ 2031.260(a), 2033.250(a), and 2030.260(a). Not providing a timely response to propounded discovery results in a waiver of objections. CCP §§ 2031.300(a), 2033.280(a), and 2030.290(a). If a party to whom a discovery request is directed fails to serve a timely response, the party propounding discovery may move for an order compelling a response. CCP §§ 2031.300(b) and 2030.290(c). For Request for Admissions, the party can move for an Order that the Request for Admissions be deemed admitted. CCP § 2033.280(b). The Declaration of Brian Michael Pratt establishes that Plaintiff attempted to resolve the matter informally prior to filing this motion.

Here, Plaintiff has provided evidence that Plaintiff propounded: Form Interrogatories, Set One, Special Interrogatories, Set One, Request for Production, Set One, and Requests for Admission, Set One to Defendant Jay Lamont by mail on October 22, 2025. Plaintiff propounded Requests for Production, Set Two on October 31, 2025. Defendant served unverified, objection-only responses to the discovery on December 16, 2025 – past the deadline for all sets. Additionally, the responses were unverified. “Unsworn responses are tantamount to no responses at all. (*Zorro Inv. Co. v. Great Pacific Securities Corp.* (1977) 69 Cal.App.3d 907, 914.)” *Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 636.

Defendant served verified substantive responses on March 5, 2026. While providing verified responses renders the motion to compel moot, sanctions are still available per CRC 3.1348(a). Defendant did not provide justification for the delay. The Court does not find substantial justification or that other circumstances make the imposition of a monetary sanction unjust. Plaintiff seeks sanctions of \$1,250.00 comprise of 5 attorney hours at a rate of \$250.00 per hour. The Court finds both to be reasonable and awards sanctions to Plaintiff in the amount of \$1,250.00.

The Motion to Compel Responses is moot. The request for sanctions is **GRANTED** in the amount of \$1,250.00. Objections are waived. Plaintiff’s proposed order will be modified and executed.